PHILLIP ZINYAMA
and
A MAKOSA
and
GOODNESS KATIVHU
and
INNOCENT KATIVHU

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 17 and 24 February 2026

Opposed Application

E. T Matinenga, for the applicant
C. Mahlangu, for the 2nd and 3rd respondents

MAMBARA J:

[1] This is an application for review of taxation in terms of r 72(26) of the High Court Rules, 2021.

[2] The impugned taxation includes (at least) an item for advocate's fees in the sum of US$2,000. A pro forma invoice and acknowledgement of receipt for that amount are among the documents referenced in the papers.

[3] The taxing officer has filed a report in terms of r 72(27). It records, among other matters, that the parties failed to agree on advocate's fees, that a reduction was suggested by the respondents, and that the taxing officer allowed US$2,000 because a letter of non-opposition was served only on the day of hearing and counsel had prepared and attended.

[4] A supporting affidavit disputes the accuracy of that report on critical points, including whether any offer was made and whether the taxing officer disregarded written and oral submissions of the applicant.

[5] The issues are: (a) whether the application satisfies r 72(28) sufficiently to be entertained; (b) whether review grounds for interference with the taxing officer's discretion have been

established; and (c) if so, what the appropriate remedy is, including whether remittal should be to a different taxing officer.

[6] Rule 72(28) provides that the court application "shall" specify the items forming the subject of the grievance and allege that each such item was objected to at taxation or disallowed *meru motu*.

[7] Although procedural requirements in court rules are to be obeyed, the question is whether the defect (if any) is one that defeats the substance of the review mechanism. Zimbabwean authority warns that where mandatory requirements are ignored, the initiating process may be defective in a manner not cured by later supplementation.

[8] In this matter, the dispute on the papers is concrete and identifiable: the US$2,000 counsel-fee item is directly challenged, and the taxing officer's own report frames the parties' positions at taxation. The respondents have responded on the merits. I am satisfied that, in substance, the r 72(28) threshold is met for purposes of determining the appropriate remedy.

[9] The governing review principles are settled. A court is slow to interfere with a taxing officer's discretion, and will do so only where the taxing officer acted on a wrong principle, failed to exercise discretion, was grossly unreasonable, or was clearly wrong on an item.

[10] Rule 72(3) and (8)(a) require that allowed costs and disbursements be necessary or proper for the attainment of justice, and that disbursements be reasonable and reasonably incurred.

[11] Mahomed v Bredenkamp & Another (SC 82/20) makes plain that, in relation to counsel fees claimed as disbursements, the taxing officer must enquire into necessity and reasonableness. Allowing the fee merely on a superficial basis, without bringing the mind to bear on the propriety of recovery, is reviewable.

[12] On the material before me, the taxation of the counsel fee is entangled with disputed factual assertions about what occurred at the taxation hearing, and whether the issues relevant to necessity and reasonableness were properly ventilated.

[13] In such circumstances, this court should be slow to substitute its own taxation. *Cone Textiles Pvt) Ltd* v *C. Pettigrew (Pvt) Ltd and Anor* 1984(1) ZLR 274 (SC) recognises substitution power where the court is "at large", but equally recognises that remedial choice remains discretionary and context-dependent.

[14] A *de novo* taxation is the fairer and more institutionally appropriate remedy where the taxing discretion has arguably not been properly exercised in the first instance, and where the record does not allow this court to fix quantum without itself descending into taxation.

[15] The remaining question is: before whom should the fresh taxation occur? On the papers, the taxing officer's report is contested on material facts. This is not merely a disagreement about the ultimate outcome; it is a dispute about what transpired.

[16] The High Court's review jurisdiction includes grounds such as bias and gross irregularity, and empowers the court to set aside or correct civil proceedings or decisions.

[17] The overarching principle of impartial adjudication requires that any reasonable apprehension of bias must be examined objectively. The apprehension must itself be reasonable; mere suspicion is insufficient.

[18] I make no finding of actual bias. However, the interests of justice and the integrity of the taxation process require that a fresh taxation should not take place before an officer whose account of the proceedings is itself a central, disputed question in the review.

[19] Rule 72(1) recognises that registrars may designate assistant taxing officers, and the rule contemplates taxation by such designated officials. It is thus competent and practical to direct that the matter be re-allocated to a different taxing officer.

[20] The re-taxation must be *de novo,* with the parties afforded a fair opportunity to address the disputed items, and with the taxing officer directed to apply r 72(3) and (8)(a) rigorously to the counsel fee and any other disputed disbursements.

[21] Where the applicability of any amended tariff is raised, the taxing officer must also apply r 72(5) (no application of amendments to work done before the amendment came into operation), as that is a rule-based constraint on the taxation discretion.

[22] In the premises, I order as follows.

[23] The taxation impugned in this application (including the allowance of advocate's fees of US$2,000) is hereby set aside.

[24] The matter is remitted to the Registrar for allocation to a different taxing officer (or assistant taxing officer) for *de novo* taxation of the disputed bill/items, with the following directions:

(a) the taxing officer shall apply r 72(3), r 72(8)(a), and, where relevant, r 72(5) of the High Court Rules, 2021;

(b) the taxing officer may require production of supporting documentation for disputed disbursements;

(c) the parties may file concise written submissions limited to the disputed items at least 48 hours before the taxation date fixed by the taxing officer.

[25] Each party shall bear its own costs.

MAMBARA J:……

Mufuka & Associates, applicant's legal practitioners
Maposa Mahlangu Attorneys, second and third respondents legal practioners